IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

TUESDAY, THE FIFTEENTH DAY OF SEPTEMBER
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE LAXMI NARAYANA ALISHETTY

WRIT PETITION NO: 35945 OF 2025

Between:

1. Syeda Ghousiya Sultana, D/o. Syed Siddique Ahmed, W/o. late Mohammed Aslam, Aged about 49 years, Occ. Housewife, H No 17-1-137/2/B, Rain Bazar, Yakutpura, Charminar, Hyderabad - 500 023.
2. Tashfeen Fatima, D/o. late Mohammed Aslam, Aged about 21 years, Occ. Student,
3. Nikhath Fatima Tazeen, D/o. late Mohammed Aslam, Aged about 20 years, Occ. Student,
4. Mohammed Ghouseuddin, S/o. late Mohammed Aslam, Aged about 18 years, Occ. Student,
5. Tabasum Fatima, D/o. late Mohammed Aslam, Aged about 17 years, Occ. Student,

   Rep. by her natural guardian and mother, Syeda Ghousiya Sultana

   R/o. H No 17-1-137/2/B, Rain Bazar, Yakutpura, Charminar, Hyderabad - 500 023.

6. Kouser Ruqia Khanam, W/o. late Mohammed Zaheeruddin, Aged about 56 years, Occ. Housewife, R/o. H.No.17-1-175/65, Nehru Nagar, Rain Bazar, Charminar, Hyderabad 500023.
7. Md. Zameeruddin, S/o. late Md. Zaheeruddin, Aged about 35 years, Occ. Business, R/o. H.No.10-3-67/E/1, 2nd Floor, Humayun Nagar, Asif Nagar, Hyderabad - 500023.
8. Mohammed Basheer Ahmed, S/o. late Mohammed Khaja, Aged about 59 years, Occ. Business, R/o. H.No.20-25/C, Mohammadia Colony, Khanapur, Adilabad, Telangana State.
9. Nazeer Ahmed, S/o. late Mohammed Khaja, Aged about 53 years, Occ. Business, R/o. H.No.20-25/C, Mohammadia Colony, Khanapur, Adilabad, Telangana State.

10. Mohammed Zaheer Ahmed, S/o. late Mohammed Khaja, Aged about 51 years, Occ. Business, R/o. H.No.20-25/C, Mohammadia Colony, Khanapur, Adilabad, Telangana State.
11. Rodda Rajeshwari, W/o. late R. Yada Goud, Aged about 57 years, Occ. Housewife,
12. Rodda Madhu Goud, S/o. late R. Yada Goud, Aged about 35 years, Occ. Business,
13. Rodda Nagesh Goud, S/o. late R. Rama Goud, Aged about 62 years, Occ. Business,
14. R. Kapil Goud, S/o. Rodda Nagesh Goud, Aged about 39 years, Occ. Business,
15. R. Pradeep Goud, S/o. Rodda Nagesh Goud, Aged about 35 years, Occ. Business,
16. R. Pawan Goud, S/o. Rodda Nagesh Goud, Aged about 37 years, Occ. Business,
17. R. Manjula Goud, W/o. late R. Sidda Goud, Aged about 51 years, Occ. Housewife,
18. Rodda Sairam Goud, S/o. late Sidda Goud, Aged about 28 years, Occ. Business,
19. R. Satyanarayana Goud, S/o. late Rama Goud, Aged about 52 years, Occ. Business,
20. Jangamma Akhila, D/o. R. Satyanarayana Goud, Aged about 27 years, Occ. Housewife, P11 to P20 all are R/o.H.No.14-52, Ward No.14, Thathapapanpally, Toopran Village and Mandal, Medak District - 502334.
21. Qazi Mohammed Abdul Raheem Rizwan, S/o. late Qazi Fateh Mohammed, Aged about 40 years, Occ. Business, R/o.H.No.11-43-2, Toopran Village and Mandal, Medak District.
22. Mohammed Abdul Qayyum, S/o. late Qazi Fateh Mohammed, Aged about 44 years, Occ. Business,
23. Mohammed Abdul Mannan, S/o. late Qazi Fateh Mohammed, Aged about 42 years, Occ. Business,
24. Mohammed Nomaan, S/o. late Qazi Fateh Mohammed, Aged about 36 years, Occ. Business,
25. Amtul Aleem Atiya, D/o. late Qazi Fateh Mohammed, Aged about 45 years, Occ. Housewife,

    P22 to P25 all are R/o. H.No.11-4-3-2, Toopran Village and Mandal, Medak District

26. Mahammad Afzal Bee, W/o. late Mahammad Mahinoddin, Aged about 74 years, Occ. Housewife, R/o. H.No.1-85, Maqdumpur, Shivampet Mandal, Medak District 502334.
27. Mahammad Gousoddin, S/o. late Mahammad Mahinoddin, Aged about 62 years, Occ. Business, R/o. H.No.1-85, Maqdumpur, Shivampet Mandal, Medak District - 502334.

28. Nooruddin, S/o. late Mahammad Mahinoddin, Aged about 47 years, Occ. Business, R/o.H.No.7-8-166/5, Goutham Nagar, Ferozguda, Balanagar, Hyderabad - 500011.

29. Mahammad Nazeeruddin, S/o. late Mahammad Mahinoddin, Aged about 38 years, Occ. Business, R/o. H.No.1-85, Maqdumpur, Shivampet Mandal, Medak District - 502334.

30. Mohammad Sharfuddin, S/o. late Mohammed Yousufuddin, Aged about 41 years, Occ. Business, R/o.H.No.13-3-866/B, Jiyaguda, Karwan, Asif Nagar, Hyderabad 500006.

31. Mohammad Shaboddin, S/o. late Mohammed Yousufuddin, Aged about 39 years, Occ. Business, R/o.H.No.13-3-866/B, Jiyaguda, Karwan, Asif Nagar, Hyderabad - 500006.

32. Mohd. Aslamuddin, S/o. late Yousufuddin, Aged about 38 years, Occ. Business, R/o.H.No.13-3-866/B, Jiyaguda, Karwan, Asif Nagar, Hyderabad 500006.

33. Mohammed Akramuddin, S/o. late Yousufuddin, Aged about 36 years, Occ. Business, R/o.H.No.13-3-866/B, Jiyaguda, Karwan, Asif Nagar, Hyderabad 500006.

34. Mohammed Salman Ahmed, S/o. late Qazi Gulam Ahmed, Aged about 40 years, Occ. Business, R/o.H.No.12-2-422/94, 1st Floor, Priya Colony, Guddimalkapur, Mehdipatnam, Telangana State.

35. Mohammed Iftekaruddin, S/o. late Qazi Maqdoom Bahauddin, Aged about 40 years, Occ. Business, R/o. 17-1-210/6/6/1, Santosh Nagar, Beside Bharat Petrol Pump, Saidabad, Hyderabad.

36. Mohammed Ghulam Mustafa, S/o. late Qazi Maqdoom Bahauddin, Aged about 40 years, Occ. Business, R/o. 17-1-210/6/6/1, Santosh Nagar, Beside Bharat Petrol Pump, Saidabad, Hyderabad.

37. Khaja Moinuddin, S/o. Mohammed Sultan, Aged about 62 years, Occ. Business, R/o. H.No.11-3-357/16/B/2, Shabazguda, Srinivas Nagar Colony, Secunderabad, Hyderabad.

38. Khaja Qutubuddin, S/o. Mohammed Sultan, Aged about 60 years, Occ. Business, R/o. H.No.7-71/60, Maheshwari Nagar, St. No.8, Habsiguda, Hyderabad.

39. Mohammed Badroddin, S/o. Mohammed Sultan, Aged about 49 years, Occ. Business, R/o. H.No.11-3-357/2/4, Shabazguda, Parsigutta, Secunderabad

Rep. by their General Power of Attorney holder, Pedapudi Venkaja Shrinagu, S/o. P. Venkata Mohan Rao, Aged about 40 years, Occ. Business, R/o. Flat No.101, Plot No.24, Laxmi Ganapathi Apartment, Road No.2, RTC Colony, Medchal, Ranga Reddy District - 501404.

...PETITIONERS

AND

1. The State of Telangana, Rep. by its Principal Secretary, Revenue Department, Telangana Secretariat, Hyderabad.

2. Telangana State Waqf Board, Rep. by its Chief Executive Officer, Razak Manzil, Opp. Public Gardens, Nampally, Hyderabad
3. The District Collector, Medak District.
4. The Revenue Divisional Officer, Toopran Revenue Division, Medak District.
5. The Tahsildar, Toopran Mandal, Medak District

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue a writ, order or direction more particularly one in the nature of WRIT OF MANDAMUS to declare the action of the 2nd respondent in including the lands of petitioners 1 to 5 in Sy.Nos.893, 894 and 897 admeasuring Ac.0.20 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.05 gts, lands of petitioners 6 and 7 in Sy.Nos.893, 894 and 897 admeasuring Ac.0.20 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 8, 9 and 10 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 11 to 20 in Sy.No.1031/EE admeasuring Ac.1.0950 gts and land in Sy.No.1031/AA admeasuring Ac.0.2475 gts, land of petitioners 21 to 25 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.06 gts, land of petitioners 26 to 29 in Sy.Nos.893/AA3, 894/AA3 and 897/AA3 admeasuring Ac.0.1325 gts, lands of petitioners 30 to 33 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of Petitioner No.34 in Sy.Nos.893, 894, 895, 896 and 897 admeasuring Ac.1.22 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 35 and 36 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 37, 38 and 39 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts situated at Toopran Village and Mandal, Medak District in Gazette Notification No.46-A dated 20.12.2001 treating the lands of the petitioners belongs to Waqf properties, as illegal, improper, null, void and unjust and consequently to delete the lands of the petitioners from the prohibitory list furnished by the 2nd respondent

I.A. NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the respondents to delete the lands of petitioners 1 to 5 in Sy.Nos.893, 894 and 897 admeasuring Ac.0.20 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.05 gts, lands of petitioners 6 and 7 in Sy.Nos.893, 894 and 897 admeasuring Ac.0.20 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 8, 9 and 10 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 11 to 20 in Sy.No.1031/EE admeasuring Ac.1.0950 gts and land in Sy.No.1031/AA admeasuring Ac.0.2475 gts, land of petitioners 21 to 25 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.06 gts, land of petitioners 26 to 29 in Sy.Nos.893/AA3, 894/AA3 and 897/AA3 admeasuring Ac.0.1325 gts, lands of petitioners 30 to 33 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of Petitioner No.34 in Sy.Nos.893, 894, 895, 896 and 897 admeasuring Ac.1.22 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 35 and 36 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts, lands of petitioners 37, 38 and 39 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts situated at Toopran Village & Mandal, Medak District in Gazette Notification No.46-A, dated 20.12.2001 treating the lands of the petitioners belongs as Waqf properties, pending disposal of the Writ Petition

Counsel for the Petitioners: SRI JALLI KANAKAIAH, REPRESENTING FOR SRI JALLI NARENDAR

Counsel for the Respondent Nos. 1, 3 to 5: GP FOR REVENUE

Counsel for the Respondent No.2 : SRI FARHAN AZAM KHAN, SC FOR TELANGANA STATE WAQF BOARD

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

HONOURABLE SRI JUSTICE LAXMI NARAYANA ALISHETTY

WRIT PETITION No.35945 of 2025

(CNR.No.HBHC010717512025)

Reserved on 01.07.2026

Pronounced on 15.09.2026
Uploaded on 15.09.2026

Between:
Syeda Ghousiya Sultana
and 38 others.

...Petitioners

And:
The State of Telangana,
reptd by its Principal Secretary,
Minority Welfare Department,
Hyderabad and four others.

...Respondents

ORDER:

This Writ Petition is filed seeking issuance of a writ of *Mandamus* declaring the action of respondent No.2 in issuing Gazette Notification No.46-A, dated 20.12.2001, under Section 52 of the Waqf Act, 1954, whereby the lands of petitioner Nos.1 to 5 in Sy.Nos.893, 894 and 897 admeasuring Ac.0.20 gts; in Sy.Nos.432, 433 and 434 admeasuring Ac.0.05 gts; lands of petitioner Nos.6 and 7 in Sy.Nos.893, 894 and 897 admeasuring Ac 0 20 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts; lands of petitioner Nos.8, 9 and 10 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts; lands of petitioner Nos.11 to 20 in

Sy.No.1031/EE admeasuring Ac.1.0950 gts and in Sy.No.1031/AA admeasuring Ac.0.2475 gts; lands of petitioner Nos.21 to 25 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.06 gts; lands of petitioner Nos.26 to 29 in Sy.Nos.893/AA3, 894/AA3 and 897/AA3 admeasuring Ac.0.1325 gts; lands of petitioner Nos.30 to 33 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts; lands of Petitioner No.34 in Sy.Nos.893, 894, 895, 896 and 897 admeasuring Ac.1.22 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts; lands of petitioner Nos.35 and 36 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.1.02 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts; lands of petitioner Nos.37, 38 and 39 in Sy.Nos.893, 894, 895 and 897 admeasuring Ac.0.1325 gts and in Sy.Nos.432, 433 and 434 admeasuring Ac.0.03 gts situated at Toopran Village and Mandal Medak District, (hereinafter referred to as the "subject property"), were notified as 'Waqf lands' without issuing any notice to the petitioners, as illegal, improper, null, void and unjust and consequently to delete the aforesaid lands of the petitioners from the prohibitory list furnished by respondent No.2.

2. Heard Sri Jalli Kanakaiah, learned senior counsel appearing for Sri Jalli Narendar, learned counsel-on-record for the petitioners, Sri Farhan Azam Khan, learned Standing Counsel for Telangana State Waqf Board and learned Assistant Government Pleader for Revenue.

3. Learned counsel for the petitioners submitted that petitioner Nos.21 to 25, 34, 35 and 36 are the absolute owners and possessors of the land in Sy.Nos.893 to 897, having derived title to the same by way of inheritance from ancestors; that the competent revenue authorities granted Occupancy Rights Certificates (ORC), dated 05.06.1990, to the forefathers of petitioner Nos.21 to 25, 34, 35 and 36; and that pursuant thereto, petitioner Nos.21 to 25, 34, 35 and 36 were issued Pattadar Passbooks and Title Deeds in their favour; that petitioner Nos.21 to 25, 34, 35 and 36 have been in peaceful and uninterrupted possession and enjoyment of the subject property, and their names have consistently reflected in the revenue records as pattadars, owners and possessors.

3.1. He further submitted that when the petitioners approached the registering authorities for execution and registration of sale deeds in favour of prospective purchasers, they were shocked to learn that the subject property is included in the prohibited properties list, vide Gazette Notification No.46-A at Sl.No.19509, dated 20.12.2001.

3.2. Learned counsel further submitted that immediately upon coming to know of the inclusion of the subject property in the impugned Gazette Notification, the petitioners approached respondent No.2 requesting for deletion of the subject property from the prohibited properties list, but respondent No.2 rejected their request claiming that the subject property is waqf property; and as such, the petitioners' subject property continues to remain in the prohibited properties list, causing grave prejudice and preventing the petitioners from exercising their lawful proprietary rights.

3.3. Learned counsel further submitted that respondent No.2 has not asserted any lawful title or possession over the subject property; that at no point of time, any notice was issued to the petitioners calling upon them to show their title over the subject property before publication of the Gazette Notification; and that no enquiry was conducted, no opportunity of hearing was afforded to the petitioners and no proceedings were initiated questioning the petitioners title or possession, and thus, the respondents acted in violation of the principles of natural justice and fair procedure.

3.4. Learned counsel further submitted that respondent No.2, without following the mandatory procedure contemplated under the provisions of the Waqf Act, 1954, included the subject property in the impugned Gazette

Notification allegedly issued under Section 5(2) thereof, which is wholly illegal, arbitrary and without jurisdiction.

3.5. Learned counsel further submitted that the subject property is private patta land which devolved upon the petitioners through ancestral succession and family partition. The petitioners and their predecessors-in-interest have been in lawful possession and enjoyment of the land for several decades. The land has always been recognized as private patta land in all revenue records, and at no point of time, has it ever been dedicated for any religious, charitable or pious purpose so as to constitute Waqf property.

3.6. Learned counsel further submitted that the ORCs granted in favour of forefathers of the petitioners have attained finality, since the same have not been cancelled, modified or challenged before any competent forum. As the revenue entries standing in the name of the petitioners have remained intact for several decades, there is a presumption of correctness until rebutted in accordance with law. Therefore, respondent No.2 could not have unilaterally treated the subject property as Waqf property.

3.7. Learned counsel further submitted that the action of respondent No.2 in illegally including the subject property in the prohibited properties list has seriously affected the petitioners' constitutional and statutory

rights, and the petitioners have been deprived of their right to alienate, mortgage or otherwise enjoy the subject property despite possessing valid title. Such action of respondent No.2 is without authority of law and in violative of Articles 14 and 300-A of the Constitution of India and hence, the same cannot be sustained.

3.8. Learned counsel further submitted that the administrative action affecting valuable property rights of persons must satisfy the test of fairness, transparency and reasonableness. The impugned action of the respondents fails to meet any of these constitutional requirements; that the action of respondent No.2 in including the subject property of the petitioners in the impugned Gazette notification is arbitrary and reflects failure on the part of the respondent-authorities to discharge their statutory duties, which resulted in irreparable hardship and financial loss to the petitioners.

4. By contending as above, learned counsel for petitioners prayed to allow the Writ Petition.

5. On the other hand, learned Standing Counsel for Waqf Board submitted that in the year 1960, the then Government of Andhra Pradesh appointed a Survey Commissioner of Waqfs for survey and demarcation of the Waqf properties in the State, as provided under Section 4 of the Waqf

Act, 1954. Accordingly, the Survey Commissioner of Waqfs, through his survey officials and by issuing notice through tom-tom beat in rural areas, conducted survey and demarcated all the Waqf properties, by preparing survey forms as prescribed; that the survey conducted by the Survey Commissioner of Waqfs in respect of subject property was also to the knowledge of the general public and the said tom-tom beat was got done through the village servants, village patwaris, village revenue officers and revenue inspectors, etc., and as such, the petitioners cannot contend that no notice was issued to them before publication of the impugned Gazette notification and due process of law was not followed.

5.1. Learned Standing Counsel further submitted that though the exercise of survey and demarcation of all the Waqf properties by making tom-tom beat announcement for the local public was taken up in the early 1960s itself, the contents of the survey forms were published in the year 2001 in the impugned Gazette Notification, which has become final as provided under the Section-6 of the Waqf Act, 1955.

5.2. Learned Standing Counsel vehemently submitted that the present Writ Petition filed challenging the Gazette Notification issued under the Waqf Act, 1954, after repeal of the Waqf Act, 1954, is not maintainable. He further submitted that the changes under Sections 4 and 5 which are

germane to the instant *lis* stands altered by the Unified Waqf Management, Empowerment, Efficiency and Development Act, 1995 (for brevity 'UWMEED') as amended by the Waqf Amendment (Act No.14 of 2025) having come into force w.e.f. 08.04.2025 and that prior to that also, the Waqf Act, 1995 had been amended by the Amendment Act No.27 of 2013, w.e.f 01.11.2013. The Waqf Act, 2025, provides for registration of all waqf properties, with the introduction of UWMEED Portal on 06.06.2025, to digitalize and streamline Auquaf registration in line with the Waqf Amendment Act 14 of 2025, however, the procedure has not been completed.

5.3. Learned Standing Counsel further submitted that the UWMEED, 1995 being procedural law, stands as an exception and is retroactive and in support of his submission, he relied upon the judgment rendered in ***Shyam Sunder and others vs Ram Kumar and another***[1], which had been reiterated in ***Zile Singh vs State of Haryana***[2].

5.4. Learned Standing Counsel has placed reliance on the judgment rendered in ***Shiv Sagar Tiwari vs Union of India***[3], wherein the Hon'ble Supreme Court observed that publication in news papers is sufficient

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[1] AIR 2001 SC 2472
[2] 2004 (8) SCC 1
[3] 1997 (1) SCC 444

notice to the local populace who were affected and were non-local residents.

5.5. He further submitted that the every waqf institution has serial number; that notices have been given to each institution before conducting separate survey; that about 92,000 institutions were surveyed during the first Survey conducted by the Survey Commissioner, who submitted his report to the Government.

5.6. Learned Standing Counsel further submitted that the relief sought by writ petitioners in the present writ petition tantamounts to virtual perpetuation of illegality, since at the outset, the present writ petition is not maintainable and is being hit by delay and laches, as held in catena of judgments of this Court and the Hon'ble Apex Court. In support thereof, he relied on the judgment of the Hon'ble Apex Court in ***Charulatha Behera vs Pravati Parida and others***[4].

5.7. Learned Standing Counsel for Waqf Board finally submitted that the judgments relied by learned counsel for the petitioners is no more good law and further, when the Parliament in its wisdom has enacted the Waqf Act, 2025, thereby changing the procedure to be followed, which came into effect from 08.04.2025. the writ petitioners cannot contend non-

[4] 2015 (4) SCC 30

compliance of the procedure which is not in force as on date and accordingly, prayed to dismiss the Writ Petition.

6. Learned counsel for petitioners, in reply to submissions made by learned Standing Counsel for Waqf Board, submitted that the contention of the Waqf Board that survey was conducted under Section 4 of Waqf Act, 1954, is unsupported by production of the original survey report. Under Sections 4 and 5 of the Waqf Act, 1954 (and similarly under the 1995 Act), the Survey Commissioner must conduct a quasi-judicial enquiry, issue notices to persons interested, invite objections, examine revenue records and submit a detailed report. Publication under Section 5 of the Waqf Act, 1954 must be based on such lawful enquiry. However, in the instant case, the Waqf Board has not placed on record any survey proceedings, enquiry file, objection register and the notice acknowledgments.

6.1. Learned counsel further submitted that the subject property was recorded as patta land along with the name of pattadar in the revenue records, therefore, when the vested proprietary rights are affected, individual notice is mandatory. In such an event, the specific case of Waqf Board about issuance of notice by beat of *tom tom* in the Village is legally insufficient. Public announcement without proof, cannot substitute service of notice on affected land owners.

6.2. Learned counsel further submitted that the contention of the Waqf Board that the impugned Gazette publication attained finality and as such, the petitioners ought to have approached the Waqf Tribunal under Section 83 of Waqf Act is misconceived. The challenge in the present Writ Petition is to the very validity and legality of the notification. When mandatory statutory provisions of law are not complied with and the action of the Waqf Board is void *ab initio*, writ jurisdiction can be invoked and Writ Petition is maintainable.

6.3. Learned counsel further submitted that admittedly, the Waqf Act, 1954 stood repealed with the enactment of Waqf Act 1995. After repeal, no notification could be issued under the repealed Act, 1954. However, the action of the respondents in issuing the notification, dated 14.08.2003, under the repealed Waqf Act, 1954, declaring vast extent of properties as waqf properties, has, in fact, driven a large number of persons to approach this Court by filing Writ Petitions challenging the said notification. Section 112 of Waqf Act, 1995, saves only completed actions; it does not authorize fresh publication under a dead statute.

6.4. Learned counsel further submitted that the Waqf Board relies on the doctrine "*Once Waqf, always Waqf.*" The doctrine applies only where Waqf character is first lawfully established. In the present cases, there is no

proof of wakif, no deed of dedication, no evidence of permanent charitable or religious endowment, and no statutory adjudication establishing Waqf status, hence, the said doctrine has no application to the present case.

6.5. Learned counsel further submitted that even assuming existence of graves or religious structures in the subject property, as contended in the counter, mere physical existence does not establish legal Waqf dedication. Dedication must be proved in accordance with law. In this regard, learned counsel for petitioners relied on the order passed by a learned single Judge of this Court in W.P.No.33133 of 2014, wherein it is held that mere inclusion of a particular property in Gazette notification without statutory compliance of the mandatory procedure under the Act does not create title on the Waqf Board over the said property.

6.6. Learned counsel further submitted that the contention of the Waqf Board that delay defeats the petitioners' claim is untenable, since a void action can be challenged at any time. A notification issued without jurisdiction is a nullity in the eye of law; that the long inaction on the part of the Waqf Board, failure to exercise possession, manage the property, collect rent, or assert rights for decades, all put together belies the claim of Waqf character and demonstrates absence of effective control or recognition.

7. On careful consideration of the submissions advanced by the learned counsel appearing on either side and on perusal of the relevant material available on record, the following issues emerge for adjudication:-

(1) Whether the petitioners have locus standi to maintain the Writ Petition?

(2) Whether there is delay and laches on the part of the petitioners?

(3) Whether the Writ Petition is maintainable inspite of availability of alternative remedy of approaching the Waqf Tribunal?

(4) Whether the procedure contemplated under the Waqf Act, 1954, has been followed prior to issuance of the impugned Gazette Notification?

(5) To what relief?

Issue No.1:-

8. The petitioners have produced ORC, vide D.Dis.No.A/427/901, dated 05.06.1990. Pattadar Passbooks, Title Deeds and revenue records reflecting their names as pattadars, owners and possessors of the subject lands. It is not the case of the respondents that the ORC or the revenue entries standing in the names of the petitioners have been cancelled or

declared invalid by any competent forum. Thus, the petitioners continue to enjoy *prima facie* title and lawful possession over the subject property.

9. The grievance of the petitioners is that their subject property has been included in the impugned Gazette Notification, dated 20.12.2001, and is brought under the prohibited properties list, thereby preventing them from alienating or otherwise dealing with the subject property. Undoubtedly, by such action of the Waqf Board, the petitioners are subjected to civil consequences and it also directly affects their constitutional and proprietary rights guaranteed under Article 300-A of the Constitution of India. Therefore, the petitioners are persons directly aggrieved by the impugned action and possess sufficient legal interest to invoke the extraordinary jurisdiction of this Court under Article 226 of the Constitution.

10. The expression "person aggrieved" has consistently received liberal interpretation by the Hon'ble Supreme Court. In ***Calcutta Gas Company (Proprietary) Ltd. v. State of West Bengal***[5], the Constitution Bench of Hon'ble Supreme Court held that a person who has suffered a legal injury or whose legal rights are directly affected by administrative action has the

[5] AIR 1962 SC 1044

necessary locus standi to maintain a writ petition. Similarly, in ***State of Orissa v. Madan Gopal Rungta***[6], it was held that the existence of an enforceable legal right is the foundation for invoking jurisdiction under Article 226.

11. Likewise, in ***Ayaaubkhan Noorkhan Pathan v. State of Maharashtra***[7], the Hon'ble Supreme Court explained the concept of an "aggrieved person" and held that a person can maintain a writ petition when he suffers a legal grievance by reason of deprivation of something to which he is legally entitled. The Court observed that only a person who has suffered legal injury by reason of violation of his legal or constitutional right has the locus to maintain proceedings.

12. In the present case, the petitioners have demonstrated that the impugned notification has directly impaired their right to enjoy, alienate and deal with the subject property. Therefore, they clearly answer the description of "persons aggrieved".

13. Furthermore, the petitioners being recorded as pattadars and possessors of the subject property and whose proprietary rights stand directly affected by the impugned notification, have a clear legal interest in

[6] AIR 1952 SC 12
[7] 2013 (4) SCC 465

the subject matter. They satisfy the requirement of being "persons aggrieved" and are fully competent to invoke the jurisdiction of this Court under Article 226 of the Constitution.

14. In the light of the above, this Court holds that the petitioners have *locus standi* to maintain the present writ petition. The preliminary objection raised by the respondent-Waqf Board regarding maintainability of the Writ Petition due to lack of locus standi of the petitioners is, therefore, rejected.

15. Accordingly, this issue is answered in favour of the petitioners.

Issue No.2:-

16. As regards the contention of the respondents that the Writ Petition is liable to be dismissed on the grounds of delay and laches, it is pertinent to note that the petitioners have specifically pleaded that they came to know of the inclusion of their lands in the prohibited properties list only when they approached the registering authority for registration of sale deeds and immediately, they approached respondent No.2 seeking deletion of their lands from the prohibited properties list. Mere delay on the part of the petitioners cannot defeat their right to challenge an action allegedly

affecting their vested proprietary rights. The issue of delay cannot be decided as an independent issue, where the substantial rights of the parties are to be decided based on the merits of the case.

17. Therefore, this issue is answered accordingly.

Issue No.3:-

18. As regards the objection raised by learned Standing Counsel for the Waqf Board with regard to maintainability of the Writ Petition in view of availability of alternative remedy of approaching the Waqf Tribunal under Section 83 of the Waqf Act, it is to be seen that the petitioners have questioned the very jurisdiction of the respondents to include their lands in the Gazette Notification without complying with the mandatory provisions of Sections 4 and 5 of the Waqf Act, 1954, and also in violation of the principles of natural justice. The challenge is not merely to the correctness of the notification but to the legality of the decision-making process itself.

19. It is a settled principle that the existence of an alternative remedy does not bar the exercise of writ jurisdiction, where the impugned action is without jurisdiction or in violation of principles of natural justice. In ***Whirlpool Corporation v. Registrar of Trade Marks***[8], the Hon'ble Supreme Court held that a writ petition is maintainable, notwithstanding

[8] 1998 (8) SCC 1

the availability of an alternative remedy to the petitioner, to seek enforcement of fundamental rights when there has been violation of principles of natural justice; or the impugned proceedings are wholly without jurisdiction or the vires of an Act is under challenge.

20. The said principle has been reiterated in ***Harbanslal Sahnia v. Indian Oil Corporation Ltd***[9]., and ***Radha Krishan Industries v. State of Himachal Pradesh***[10], wherein the Hon'ble Supreme Court summarized the exceptions to the rule of alternative remedy and held that where an order is passed without jurisdiction or in breach of natural justice, the High Court can entertain a writ petition under Article 226 of Constitution of India.

21. In this regard, it is trite to refer to judgment of the Hon'ble Supreme Court in ***Rafique Bibi (Dead) by LRs v. Sayed Waliuddin (Dead) by LRs***[11], wherein it is held that an order which is a nullity for want of jurisdiction can be challenged whenever and wherever it is sought to be enforced. Similarly, in ***Kiran Singh v. Chaman Paswan***[12], the Hon'ble Supreme Court held that a decree or order passed without jurisdiction is a nullity and its invalidity can be set up whenever it is sought to be enforced.

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[9] 2003 (2) SCC 107
[10] 2021 (6) SCC 771
[11] 2004 (1) SCC 287
[12] AIR 1954 SC 340

22. In the context of Waqf disputes, the Hon'ble Supreme Court in ***Board of Muslim Waqfs, Rajasthan v. Radha Kishan***[13], held that where persons claiming independent title are affected by inclusion of their property as Waqf property, they are entitled to challenge such inclusion before the competent forum. The decision recognizes that private landholders whose rights are prejudicially affected by Waqf notifications are the 'persons aggrieved' and they have the requisite standing to question such action.

23. Therefore, when the petitioners allege that the impugned notification is *void ab initio* for want of jurisdiction and non-compliance of mandatory statutory requirements, they are entitled to invoke the writ jurisdiction of this Court.

24. This issue is accordingly answered.

Issue No.4:-

25. The challenge in the Writ Petition to the impugned gazette notification dated 20.12.2001 is primarily on the ground that the procedure prescribed under Section 4 of the Waqf Act, 1954, which is *pari materia* to Sections 4 and 5 of the Waqf Act, 1995 has not been followed while

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[13] (1979) 2 SCC 468

issuing the impugned notification, thereby showing the subject property as waqf property.

26. A perusal of the impugned notification reveals that the same has been issued on 20.12.2001, by claiming that the subject lands have been surveyed under Section 4(3) of the Waqf Act, 1957 (wrongly noted instead of the Waqf Act, 1954) and published under Section 5(2) of the Waqf Act, 1954.

27. At this juncture, it is relevant to refer to vociferous contention of the learned Standing Counsel for the Waqf Board that in view of the judgment of the Hon'ble Supreme Court in ***Rashid Wali Beg*** **v.** ***Farid Pindari***[14], and Section 83(1) of the Waqf Act, 1995, the dispute at hand about the nature and character of the property being waqf can be dealt with only by the Waqf Tribunal and neither the Writ Court nor the State Government is competent to decide such issues.

28. The High Court under Article 226 of the Constitution of India is always empowered to examine whether essential attributes for declaration of waqf have been made out or not; whether the procedure of survey and conducting quasi-judicial inquiry prior to declaration of any property as waqf has been diligently and sincerely followed by the authorities as it has

[14] (2022) 4 SCC 414

the draconian consequence of depriving a large number of citizens of their fundamental and constitutional rights, and if this Court finds that a specific property has been published in the official gazette declaring the same as waqf property without following the mandatory procedure contemplated under the Act in vogue, it can always intervene or decline to acknowledge the character of waqf to such property.

29. At this stage, it is apposite to refer to the judgment of the Hon'ble Supreme Court in ***Madanuri Sri Ramachandra Murthy* v. *Syed Jalal***[15], wherein while dealing with a case where the waqf authorities had staked claim to a property/land/structure as waqf property in a similar fashion abridging the fundamental rights of large number of adversely affected citizens or have acted arbitrarily, the Hon'ble Supreme Court clearly held that conducting of survey by the Survey Commissioner prior to notification of any property as a waqf is an indispensable statutory procedure and survey contemplates a quasi-judicial inquiry at the grass root level as to whether the property is actually a waqf property or not; that the inclusion of any property as a waqf property must be with due application of mind; that only thereafter, it can be sent to the Government for notification in the official gazette; and that if the above mandatory

[15] (2017) 13 SCC 174

procedure has not been followed before issuing publication in the official gazette, then such property cannot be assumed as a waqf property.

30. For better appreciation of the case, the relevant provisions of the Waqf Act, 1954, are extracted hereunder:-

> *"**Section 4** empowered the State Government to appoint a State Commissioner, and as many Additional and Assistant Survey Commissioners of Waqf as may be necessary, by a notification in the official gazette for the purpose of making survey of waqf properties existing within the State. The Survey Commissioner, after making a survey of waqf properties, would submit his report to the State Government containing various particulars as mentioned in **sub-sections (3)** and **(4)** of **Section 4** of the Act.*
>
> ***Section 5** mandated that on receipt of such report from the Survey Commissioner made under **sub-section (3)** of **Section 4,** the State Government should forward a copy of the same to the Waqf Board. The Waqf Board would examine the report forwarded to it and publish in official gazette, the list of waqfs in the State.*
>
> *For resolving the disputes regarding waqfs, **Section 6** of the **1954 Act**, provided jurisdictional civil Court as a forum and decision of civil Court in respect of such matters should be final. It was also clarified that no such suit should be entertained by the civil Court, after the expiry of one year from the date of publication of the list of waqfs as per **sub-section (2)** of **Section 5**.*

> ***Sub-section (4) of Section 6*** *stated that the list of waqfs published under* ***sub-section (2) of Section 5*** *shall be final and conclusive unless such list is modified on the direction of the civil Court.*
>
> *The provisions found in* ***Sections 5*** *and* ***6*** *of the* ***Waqf Act, 1995*** *and the* ***1954 Act*** *are almost akin to each other. However, the change brought in by Parliament under the* ***1995 Act*** *is that, in the case of dispute regarding waqfs, the aggrieved party needs to approach the Waqf Tribunal constituted under* ***Section 83*** *of the* ***Waqf Act, 1995*** *and consequently, the jurisdiction of the civil Court is taken away. Except the aforesaid change, no other substantial modification is found in those provisions."*

31. It is relevant to refer to the judgment of Division Bench of the High Court of Kerala in ***Ezhome Sunni Valiya Juma v. Kerala Waqf Board***[16] wherein it is held that inquiry to be conducted by Waqf Board before declaring any property as a waqf is a '***quasi-judicial function***', and therefore, no unilateral decision could have been taken without recording any reason as to how, when and why the property came to be included as a waqf property.

32. It is relevant to refer to the judgment in ***Salem Muslim Burial Ground Protection Committee v. State of Tamil Nadu***[17], wherein the

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[16] 2019 (3) KLT 1064
[17] (2023) 16 SCC 264

Hon'ble Supreme Court had an occasion to consider the challenge to the conversion of private property as a waqf property, on the ground of non-compliance of statutory procedure prescribed under the Waqf Act of 1954 or 1995, and the Hon'ble Supreme Court, after comprehensively examining the scheme of both the Acts of 1954 and 1995, categorically held that mere notification in the official gazette is not enough, but the notification must be preceded by a preliminary survey followed by submission of report to the State Government about the exact status of the land proposed to be notified as waqf. Conducting of survey and quasi-judicial inquiry before declaring any property as a waqf property is *sine qua non* before declaring any property as waqf property, in the absence of which, notification under Section 5 of the Waqf Act stands vitiated and would carry no legal recognition. The Supreme Court further held that such a notification published in the official gazette at the instance of Waqf Board shall not bind the State Government at all, especially when the mandatory procedure preceding inclusion of property as a waqf under Sections 4 and 5 of the Act of 1954 has not been followed.

33. The above principles have been reiterated in ***State of Andhra Pradesh*** **v.** ***A.P. State Waqf Board***[18], wherein it is observed thus:

> *"A plain reading of the provisions of the above two Acts would reveal that the notification under* ***Section 5*** *of both the Acts declaring the gist of the waqfs shall only be published after completion of the process as laid down under* ***Section 4*** *of the above Acts, which provides for two surveys, settlement of disputes arising thereto and the submission of the report to the State Government and to the Board.* ***Therefore, conducting of the surveys before declaring a property a waqf property is a sine qua non. In the case at hand, there is no material or evidence on record that before issuing notification under Section 5 of the Waqf Act, 1954, any procedure or the survey was conducted as contemplated by Section 4 of the Act. In the absence of such a material, the mere issuance of the notification under Section 5 of the Act would not constitute a valid waqf in respect of the suit land. Therefore, the Notification dated 29-4-1959 is not a conclusive proof of the fact that the suit land is a waqf property.***
>
> *In T.N. Waqf Board v. Hathija Ammal (2001) 8 SCC 528, it was observed that the Waqf Board should follow the procedure as required under* ***Sections 4, 5*** *and* ***6*** *or* ***Section 27*** *of the* ***Waqf Act*** *before notifying the waqfs under* ***Section 5*** *of the Act.*
>
> *In Madanuri Sri Rama Chandra Murthy v. Syed Jalal (supra), it was observed as under: (SCC p. 185, Para 16)*

[18] (2022) (20) SCC 383

" Thus, it is amply clear that the conducting of survey by the Survey Commissioner and preparing a report and forwarding the same to the State or the Waqf Board precedes the final act of notifying such list in the official gazette by the State under the ***1995 Act*** *(it was by the Board under the* ***1954 Act****). As mentioned supra, the list would be prepared by the Survey Commissioner after making due enquiry and after valid survey as well as after due application of mind. The enquiry contemplated under* ***sub-section (3)*** *of* ***Section 4*** *is not merely an informal enquiry but a formal enquiry to find out at the grass root level, as to whether the property is a wakt' property or not. Thereafter the waqf board will once again examine the list sent to it with due application of its mind and only thereafter the same will be sent to the Government for notifying the same in the gazette."*

It may be noted that Waqf Board is a statutory authority under the Waqf Act. ***Therefore, the official gazette is bound to carry any notification at the instance of the Waqf Board but nonetheless, the State Government is not bound by such a publication of the notification published in the official gazette merely for the reason that it has been so published.*** *In State of Andhra Pradesh v. Andhra Pradesh Waqf Board (supra), this Court consisting of one of us (V. Ramasubramanian, J. as a Member) held that the publication of a notification in the official gazette has a presumption of knowledge to the general public just like an advertisement published in the newspaper, but such a notification published at the instance of the Waqf Board in the State gazette is not binding upon the State Government.* ***It means that the notification, if any, published in the official gazette at***

the behest of the Waqf Act giving the lists of the waqfs is not a conclusive proof that a particular property is a waqf property especially, when no procedure as prescribed under Section 4 of the Waqf Act has been followed in issuing the same.

In view of the aforesaid facts and circumstances, we do not find any substance in the argument that the suit land was a waqf property and as such would continue to be a waqf always. ***In the absence of any evidence of valid creation of a waqf in respect of the suit property, it cannot be recognised as a waqf so as to allow it to be continued as a waqf property irrespective of its use or disuse as a burial ground."***

[emphasis supplied by us]

34. In the present case, the Waqf Board was required to establish that the statutory procedure prescribed under Sections 4 and 5 of the Waqf Act, 1954, had been duly followed before the subject properties were included in the impugned Gazette notification.

35. Section 4 of the 1954 Act contemplated survey of waqf properties by the Survey Commissioner appointed by the State Government. The Survey Commissioner, after conducting survey and requisite enquiry and on due application of mind, was required to submit a report to the State Government containing the particulars prescribed under Section 4(3) of the Act. Thereafter, under Section 5, the report was required to be forwarded

to the Waqf Board, which was required to examine the same and publish the list of waqfs in the Official Gazette.

36. The statutory scheme clearly indicates that the survey and enquiry under Section 4 constitute the foundation for the subsequent publication of the properties under Section 5. The requirement of conducting a proper survey and enquiry cannot be treated as an empty formality. The enquiry contemplated under Section 4 is a substantive enquiry for determining whether the properties in question constitute waqf properties, and the authorities are required to apply their mind to the relevant material before the properties are included in the final list.

37. As stated supra, in ***Salem Muslim Burial Ground Protection Committee***'s case (cited supra) and in ***State of Andhra Pradesh***'s case (19th cited supra), the Hon'ble Supreme Court has held that survey under Section 4 is not merely an administrative exercise, but involves a quasi-judicial enquiry; and that the survey, inquiry and the report must precede the publication of the Gazette notification.

38. In the case on hand, though on behalf of the respondents, it has been contended that the respondents-authorities have followed the due process of law before issuing the impugned notification, no material is

placed before this Court as to when and how the respondents have conducted preliminary survey of the waqf properties as contemplated under Sections 4 and 5 of the 1954 Act.

39. Therefore, from the above, it is obvious that the Waqf Board has to establish compliance of the following steps/foundational requirements/procedure, before declaring a property as waqf property in the official gazette:-

(i) that a Survey Commissioner was appointed in accordance with Section 4 of the Waqf Act, 1954;

(ii) that a preliminary survey of the subject properties was conducted by the competent Survey Commissioner;

(iii) that a formal enquiry was conducted with respect to the nature, character, origin and alleged dedication of the subject properties as waqf properties;

(iv) that the Survey Commissioner prepared and submitted a report under Section 4(3) containing the particulars prescribed under the Act;

(v) that the said report was forwarded by the State Government to the Waqf Board in accordance with Section 5(1) of the Act;

(vi) that the Waqf Board independently examined the said report and applied its mind to the material before including the subject properties in the list of waqfs;

(vii) that the persons having an interest in or possession of the subject properties were afforded an effective opportunity to place their objections before the competent authority during the course of the enquiry;

(viii) that a notice of the survey or enquiry was issued to the affected persons and that their objections, if any, were considered;

(ix) that the alleged survey particulars, including the survey report, local inspection report, revenue records and other foundational material, were prepared and maintained by the competent authority;

(x) that the proclamation of the survey proceedings by way of tom-tom/ beat of drum was in fact undertaken, and no contemporaneous record evidencing such publication in newspapers has been placed before this Court; and

(xi) that the properties were identified with sufficient particulars, including survey numbers, extent, boundaries and the basis upon which each individual property was treated as waqf property.

40. Significant to note that the counter-affidavit filed on behalf of the Waqf Board is completely silent with regard to compliance of the aforesaid foundational requirements. The Waqf Board has not produced the survey report, the proceedings of the Survey Commissioner, the material relating to the enquiry, the objections, if any, allegedly received and considered, or any record evidencing compliance with the procedure preceding the impugned notification. Mere assertion in the counter-affidavit that the notification was issued in accordance with law cannot supersede the production of the statutory record demonstrating compliance with the mandatory procedure.

41. Once a property is included in the statutory list of waqfs, serious civil consequences follow. Therefore, the authority exercising the statutory power was required to strictly adhere to the procedure prescribed by the Act and could not dispense with the foundational survey and enquiry contemplated under Section 4 thereof.

42. It is also pertinent to refer to the judgment of a Co-ordinate Bench of this Court in ***Cherukuri Praveena and others v. State of Telangana***[19], wherein, while considering a similar challenge under the Waqf Act, it was

[19] 2024 (4) ALT 466

held that where the procedure prescribed under Sections 4 and 5 of the Waqf Act had not been followed before publication of the Gazette notification, mere issuance of the Gazette notification would not, by itself, validate inclusion of the property as waqf property. The Gazette notification cannot be treated as an independent or self-proving source of title or character of the property as waqf when the foundational statutory proceedings/requirements/steps leading to such notification are not established.

43. There is yet another important aspect which requires consideration. The impugned notification dated 20.12.2001 was admittedly issued under the provisions of the Waqf Act, 1954. The repealing of Waqf Act, 1954, by the Waqf Act, 1995 and the amendments introduced thereafter, cannot retrospectively cure the non-compliance with the mandatory procedure prescribed under the statute which governed the issuance of the impugned notification. In other words, the validity of the notification dated 20.12.2001 has to be tested with reference to the statutory requirements applicable to the enactment under which the notification was issued and it cannot be sustained merely by relying upon subsequent amendments or subsequent statutory mechanisms.

44. It is also pertinent to note that the subsequent Unified Waqf Management, Empowerment, Efficiency and Development Act, 1995, as amended by the Waqf (Amendment) Act, 2025, does not contain any provision which retrospectively validates a Gazette notification issued under the repealed Waqf Act, 1954, without proof of compliance with the mandatory survey and enquiry contemplated under Sections 4 and 5 of the 1954 Act. The subsequent statutory regime cannot be invoked to cure a foundational defect which existed at the very inception of the impugned notification.

45. More importantly, the question in the present case is not merely whether an aggrieved person has a statutory remedy against an entry in the list of auqaf. The primary question is whether the very notification dated 20.12.2001 was validly issued in accordance with the mandatory procedure prescribed under the Act.

46. Section 6 of the Waqf Act, 1995 provides a mechanism for determination of a dispute as to whether a particular property specified in the list of auqaf is waqf property or not. However, such provision cannot be construed as dispensing with the mandatory statutory requirements which precedes the publication of the original notification. The existence

of an alternative remedy cannot retrospectively validate an otherwise defective exercise of statutory power.

47. Thus, the Waqf Board cannot contend that availability of a remedy under the subsequent statutory regime renders the challenge to the validity of the notification dated 14.08.2003 to be impermissible.

48. The subsequent statutory provisions cannot be relied upon either to validate the impugned notification or to shift the burden upon the petitioners to establish the invalidity of the impugned notification, whose statutory foundation has itself not been demonstrated by the Waqf Board.

49. There is distinction between (i) a challenge to the correctness of an entry validly made after following the statutory procedure, and (ii) a challenge to the very jurisdictional and procedural foundation upon which the notification was issued, are required to be maintained. In the former case, the statutory remedy prescribed under the Act may have relevance. In the latter case, where the competent authority has failed to establish compliance of the mandatory conditions precedent for exercise of statutory power, the Court is empowered to examine whether the impugned notification itself was lawfully issued.

50. Therefore, mere existence of a subsequent statutory mechanism for adjudication of disputes relating to waqf properties cannot, by itself, validate the impugned Gazette notification dated 14.08.2003, particularly when the Waqf Board has failed to place before this Court the any material or records demonstrating compliance of Sections 4 and 5 of the Waqf Act, 1954.

51. It is true that a waqf validly registered under the earlier law may not require fresh registration under the 1995 Act by virtue of the saving provision contained in Section 43. However, in the absence of any material showing that the subject properties were duly registered under the earlier law or that the statutory requirements for their recognition as waqf properties were otherwise satisfied, the mere assertion that the properties were included in an old Gazette notification cannot, by itself, cure the absence of the foundational statutory requirement.

52. Further, mere production of the Gazette notification dated 20.12.2001 does not establish that the notification was preceded by a valid survey, enquiry and consideration of the relevant material. A Gazette notification is the culmination of the statutory process and it cannot replace the process itself. Where the very foundation upon which the notification

rests is not produced or absent, the notification cannot be sustained merely on the ground that it was published in the Official Gazette.

53. In the present case, the Waqf Board has failed to produce any material demonstrating that the statutory process contemplated under Sections 4 and 5 of the Waqf Act, 1954 was completed before the Gazette notification dated 20.12.2001 was issued. Mere assertion of the contention of the Waqf Board that prescribed procedure has been followed prior to issuance of the impugned Gazette notification is untenable and unacceptable in the light of the fact that the Waqf Board failed to place before this Court the survey report of the Commissioner, forwarding of such report to the Waqf Board, consideration of the report by the Board, any proof of the alleged proclamation/beat of tom tom, the consideration of objections, if any, received, or the registration particulars of the subject waqf properties, nor any contemporaneous material evidencing compliance with the statutory procedure. The silence of the Waqf Board on these material aspects assumes significance, particularly when the entire statutory basis for treating the subject properties as waqf properties is under challenge.

54. A Co-ordinate Bench of this Court has also taken a similar view in W.P.No.447 of 2007, by order dated 18.09.2024, wherein the requirement

of compliance of the statutory procedure preceding the Gazette notification was considered.

55. All the judgments of the Hon'ble Supreme Court referred to supra reinforce the principle that the statutory procedure prescribed under the Waqf Act cannot be bypassed and that mere publication of a notification, without establishing compliance of the mandatory procedural requirements, cannot confer validity upon the same.

56. Thus, it has to be concluded that the mandatory procedure under the provisions of the Waqf Act, 1954, before issuance of the notification has not been complied with.

57. Accordingly, this issue is answered.

Issue No.5:-

58. In view of the aforesaid discussion, the reliance placed by the learned Standing Counsel for the Waqf Board on various judgments does not advance the case of the Waqf Board. None of the decisions relied upon by learned Standing Counsel for Waqf Board dispensed with the requirement of establishing that the statutory procedure preceding the impugned notification was actually followed. The burden was upon the Waqf Board, being the authority seeking to sustain the notification, to place the relevant records/material papers before this Court evidencing that

there is compliance of the procedure contemplated under the Act, but, it failed to do so, thereby, rendering the impugned notification unsustainable.

59. For the aforesaid reasons and discussion, and in the light of the judgments of the Hon'ble Supreme Court referred to supra, and further, having regard to the failure of the Waqf Board to establish compliance with the mandatory statutory procedure preceding the impugned notification, this Writ Petition deserves to be allowed.

60. Accordingly, the Writ Petition is allowed and the impugned Gazette Notification No.46-A, dated 20.12.2001, insofar as it relates to the subject properties of the petitioners, is hereby set aside.

61. Miscellaneous petitions pending, if any, shall stand closed. No costs

SD/- C.DEEPIKA
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

One Fair Copy to the Hon'ble Sri Justice LAXMI NARAYANA ALISHETTY
(For His Lordships kind perusal)

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5. The Executive Officer, Telangana State Waqf Board, Razak Manzil, Opp. Public Gardens, Nampally, Hyderabad
6. The District Collector, Medak District.
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8. The Tahsildar, Toopran Mandal, Medak District
9. One CC to SRI JALLI NARENDAR, Advocate [OPUC]
10. One CC to SRI FARHAN AZAM KHAN, SC FOR TELANGANA STATE WAQF BOARD, Advocate [OPUC]
11. Two CCs to GP FOR REVENUE, High Court for the State of Telangana, at Hyderabad [OUT]
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PVL

TKS

HIGH COURT

DATED: 15/09/2026

ORDER

WP.No.35945 of 2025



ALLOWING THE WRIT PETITION

WITHOUT COSTS

21 MT 18/9/26